



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JUNE 24, 2024 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA
Hon. Jo Madel D. Domalaon
Hon. Bienvenido D. Ayo, Jr.
Hon. Luis Lee E. Espeña, Jr.
Hon. Alice D. Emano
Hon. Rodolfo E. Diolata
Hon. Juan D. Ebid
Hon. Albert D. Destura
Hon. Joseph H. Yap, Jr.
Hon. Antonio J. Emano, Jr.
Hon. Rene Joseph D. Domasian

Municipal Vice Mayor/Presiding Officer
S. B. Member

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LnB Pres. /S. B. Member
SKMF Pres./S.B. Member

ABSENT:

None

ORDINANCE NO. 2024-13

Introduced by Hon. Albert D. Destura

AN ORDINANCE ON COLLECTION OF CORRESPONDING BARANGAY CLEARANCE FEE IN THE APPLICATION FOR ANY BUSINESS-RELATED TRANSACTION IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, there is a need to streamline /simplify the process of business registration in the municipality of Prieto Diaz to provide a more efficient and effective revenue collection and to promote a friendlier atmosphere for taxpayers and investors;

WHEREAS, when regulations are simple and transparent, entrepreneurs need not to suffer from red tape and time consuming transactions;

WHEREAS, the EODB ACT of 2018 or Republic Act 11032, otherwise known as "An Act Promoting Ease of Doing Business and Efficient Delivery of Government Services" was signed into law seeks to make the process of putting up and running a business in the Philippines easier and more efficient;

WHEREAS, Section 11(f) of RA 11032 provides that "Barangay clearances and permits related to doing business shall be applied issued and collected at the City/Municipality in accordance with the prescribed processing time of said Act. Provided, that the share in the collection shall be remitted to the respective barangays; and

WHEREAS, the barangays in the municipality of Prieto Diaz enacted Barangay Ordinances to authorize the municipality of Prieto Diaz to issue barangay clearance fee in the application for any business-related transaction, subject to the remittance of the aforesaid fees to the barangay and the conditions hereunder;

NOW THEREFORE, be it ORDAINED by the Sangguniang Bayan of Prieto Diaz, duly assembled, the following:

SECTION 1. COVERAGE. This policy applies only to the issuance of Barangay Clearance for business permit and locational clearance (as a requirement for the issuance of building permit) in the municipality of Prieto Diaz. Other clearances for other purposes shall still be obtained at the barangay.

SECTION 2. DEFINITION OF TERMS. The words and phrases used in this ordinance are hereby defined as follows:

1. Barangay Clearance – refers to any and all documents issued by the Barangay with or without corresponding fees as defined in their ordinances relative to or in relation to the issuance of business permit and locational /zoning clearance by the city/municipality or any other permit as may be required. (IRR OF RA.11032)
2. Barangay Clearance fees – is an amount imposed by the barangays through an ordinance and collected by the municipality in relation to the issuance of business permit and locational clearance by the municipality
3. BPLO - Business Permits and Licensing Office
4. Business Permit - is a document that must be secured from the municipal government usually through its Business Permits and Licensing Office (BPLO), for a business to legally operate in the locality. (IRR of RA 11032)
5. Locational Clearance – is a clearance issued by the Zoning Administrator/Zoning Officer to a project that is allowed under the provisions of an ordinance of a particular municipality. It is a requirement for the issuance of Building Permit
6. MTO - Municipal Treasurer's Office

SECTION 3. AUTHORITY TO COLLECT BARANGAY CLEARANCE FEE OF BUSINESS RELATED TRANSACTIONS

The municipality of Prieto Diaz is given the authority to collect Barangay Clearance Fee subject to the remittance to the subject Barangay.

SECTION 4. RATE OF BARANGAY CLEARANCE FEE TO BE COLLECTED

The rate of Barangay Clearance Fee to be collected by the municipality for the issuance of clearance shall be computed in accordance with the subject Barangay Revenue Ordinance herein attached as "Annex A", and made as an integral part hereof.

SECTION 5. SUBMISSION OF LIST TO THE MTO/BPLO

The barangays shall submit to the MTO/BPLP an updated list of existing businesses in their barangay to serve as the latter's reference of issuance of clearance.

SECTION 6. BARANGAY CLEARANCE SIGNATORY

Electronic Signature of Punong Barangay concerned shall appear in all barangay clearance issued by the MTO/BPLO.

SECTION 7. REPORTING AND REMITTANCE

The municipality shall remit the Barangay Clearance Fee collected to the subject Barangay not later than seven (7) working days of the ensuing month with the list of the issued Building and Business Permit.

SECTION 8. SEPARABILITY CLAUSE

If for any reason, a part of this ordinance is declared illegal or invalid, other parts or provision hereof which are not affected thereby shall remain valid and in full force and effect.

SECTION 9. REPEALING CLAUSE

All previous ordinance and resolutions inconsistent with the provisions of this ordinance are hereby deemed, modified or repealed accordingly.

SECTION 10. EFFECTIVITY CLAUSE

This Ordinance shall take effect fifteen (15) days after its required posting in conspicuous places in the municipality.

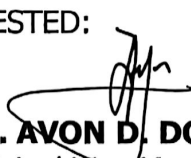
DATE ENACTED: JUNE 24, 2024

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio Escudero Jr.; copy furnished Hon. Romeo D. Domasian, Ph. D., Municipal Mayor; Ms. Gemma D. Ferrer, Municipal Treasurer; Hon. Antonio Emano, Jr., LNB President and all concerned for their information and appropriation action.

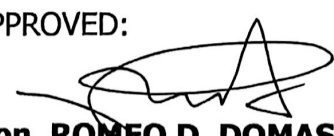
I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/ Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date approved: JUN 24 2024



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

July 29, 2024

AUG 05 2024

TRANSMITTAL NO. **410-2024**

TRANSMITTAL FOR: **THE HONORABLE SANGGUNIANG BAYAN**
Thru: **Ms. BERNADETTE E. YAO**
Secretary to the Sangguniang Bayan
LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the herein resolution approved by the 11th Provincial Board on **July 15, 2024 (105th Regular Session)** for your **information and reference.**

RESOLUTION NO. 332-2024

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2024-13, ENTITLED: "AN ORDINANCE ON COLLECTION OF CORRESPONDING BARANGAY CLEARANCE FEE IN THE APPLICATION FOR ANY BUSINESS-RELATED TRANSACTION IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

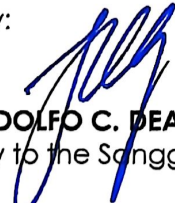
Prepared by:


RHEA T. DIESTA
Local Legislative Staff Officer III

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OFFICE of the SANGGUNIANG BAYAN LOCAL GOVERNMENT UNIT Prieto Diaz, Sorsogon
RECEIVED
BY:  SHAIRA E. HUERTAS
DATE: <u>8/5/24</u> TIME: <u>8:40 AM</u>

Noted by:


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700

EXCERPT FROM THE JOURNAL OF THE **105th REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON JULY 15, 2024** AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria "Nini" O. Ravanilla
Hon. Ralph Walter R. Lubiano
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Juan G. Guysayko
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Karl Marx H. Lozada – Provincial President, Sangguniang Kabataan Federation

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RESOLUTION NO. 332-2024

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2024-13, ENTITLED: "AN ORDINANCE ON COLLECTION OF CORRESPONDING BARANGAY CLEARANCE FEE IN THE APPLICATION FOR ANY BUSINESS-RELATED TRANSACTION IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2024-13 for review and appropriate action;

WHEREAS, the ordinance aims to simplify the process of business registration in the municipality to enhance revenue collection, as well as foster friendlier environment for taxpayers and investors;

WHEREAS, Prieto Diaz Ordinance No. 2024-13 is *intra vires* per Section 11(f) of Republic Act No. 11032, otherwise known as the "Ease of Doing Business and Efficient Government Service Delivery Act of 2018," which states, that:

"Barangay clearances and permits related to doing business shall be applied, issued, and collected at the city/municipality in accordance with the prescribed processing time of this Act: Provided, That the share in the collections shall be remitted to the respective barangays.";

Therefore, Prieto Diaz Ordinance No. 2024-13 is valid.

[Signature]

[Signature]

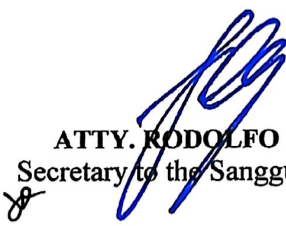
NOW, THEREFORE, on motion of Hon. Edmundo A. Atutubo, duly seconded by Hon. Jose Arturo D. Enano, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ ORDINANCE NO. 2024-13, ENTITLED: "AN ORDINANCE ON COLLECTION OF CORRESPONDING BARANGAY CLEARANCE FEE IN THE APPLICATION FOR ANY BUSINESS-RELATED TRANSACTION IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

APPROVED.

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I HEREBY CERTIFY to the correctness of the foregoing.


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRINIMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer 